

Amendment and Adoption Procedures

How each Document is adopted, the standard and expedited procedures, steps where Council does not act, and the composition of Council

Procedures guide | September 30, 2026

Status	Procedures guide. Not a law of the First Nation.
Covers	Documents 01 to 19.
Legal review	Procedures and time limits to be confirmed by legal counsel before use.

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1. Documents and adoption routes

Document	Kind	Adoption route	Started by	In force
01 Candidate Commitment Agreement, 19 Candidate Accountability Pledge	Voluntary forms	Signed by candidates before the election	Candidates	On signing
02 Oath of Office	Form	Required by Document 05, section 6 and Schedule C, once Document 05 is in force. Voluntary before that	Not applicable	Not applicable
03 Governance Constitution, 04 Members' Bill of Rights	Constitution	Fundamental Vote conducted by an independent electoral officer, with at least 45 days' published and mailed notice	Council Resolution, or a petition of 10% of Electors once Document 17 is in force	Day after the result is certified
05 Customary Election Regulations, 2026	Amends the 2014 Regulations	Section 20 of the 2014 Regulations: Council Resolution; at least 14 days' posted and mailed notice with the amendments attached; Special Meeting of Electors with at least 50% of the number who voted in the previous Election present; majority by secret ballot	Council	Date of the Special Meeting
06 Council Procedure By-law, 2026	By-law replacing By-law No. 2014.2	Motion of Council under section 26.1 of By-law No. 2014.2. Publication under Indian Act section 86. Ratification by the Electors to protect its Protected Provisions	Council	Date of publication
07, 09 to 18	Codes	Council Resolution, published within 7 days. Ratification Vote within 12 months. Afterwards amended only by Ratification Vote, except amendments that only add controls	Council	Date of the Resolution
08 Membership Code, 2026	Amends the Membership Code	Section 13 of the existing Membership Code: written request of 25% of Electors; Council prepares and presents; 3 months' posted notice; consent of a majority of all Electors by referendum or petition	Electors	Date consent is certified

2. Standard procedure

When	Step	Authority
Day 0	Council meeting: (1) motion enacting Document 06 in place of By-law No. 2014.2; (2) Resolution adopting Documents 07 and 09 to 18; (3) Resolution approving Document 05 as Council's draft amendments; (4) Resolution setting the date, place, budget, chair, and vote counter for the Special Meeting of Electors; (5) Resolution calling a Fundamental Vote on Documents 03 and 04 and appointing an independent electoral officer	By-law 2014.2 s. 26.1. Regulations 2014 s. 20.2. Indian Act s. 2(3)(b). Document 17 s. 19.2
Day 1	Publish Document 06 on the website of the First Nation and in the First Nations Gazette. Publish Documents 07 and 09 to 18 within 7 days	Indian Act s. 86. Each Code's coming into force section
Day 1	Post the notice of Special Meeting at the band office and other designated locations, and mail it to Non-resident Electors who have provided an address, with the full amendments attached	Regulations 2014 ss. 20.3 to 20.5
Day 1	Notice of the Fundamental Vote on Documents 03 and 04, with the full text, posted and mailed	Document 17 s. 6
Days 1 to 14	Information sessions on a Reserve and online. Transportation and accessibility arrangements for Electors	Document 17 s. 6.4
Day 15 or later	Special Meeting. Registration, confirmation of quorum, secret ballot, public count	Regulations 2014 ss. 20.6, 20.7
Same day	Document 05 in force. Affidavit sworn. Documents published and sent to Indigenous Services Canada	Regulations 2014 ss. 20.6, 20.8. Document 05 s. 27
Within 14 days after Document 05	Councillors in office select Portfolio Seats	Document 05 s. 28.3
Within 30 days	Portfolio Mandates published. Statements of interests filed. Records Officer designated. Standing Electoral Officer and Election Appeal Tribunal roster appointed	Document 06 s. 30.4. Document 07 s. 35.3. Document 14 s. 3.1. Document 05 s. 28.9
Day 46 or later	Fundamental Vote on Documents 03 and 04, which may be held on the same day as the Transitional Election	Document 17 ss. 5.3, 6.1
Within 60 days	Integrity Commissioner and Chair of the Appeals Panel appointed. Housing points statements issued. Contract Registry completed	Document 05 s. 28.10. Document 16 s. 22.2. Document 11 s. 34.2. Document 10 s. 25.4
Within 90 days	Special Meeting of Electors to elect the Finance and Audit Committee members, the Housing Allocation Committee, and the Appeals Panel Elector Members	Document 09 s. 29.3. Document 11 s. 34.4. Document 16 s. 22.3
Within 120 days	Transitional Election for the new Seats, or a General Election for all Seats where terms have expired	Document 05 ss. 28.5, 28.6
Within 12 months	Ratification Votes on Documents 06, 07, and 09 to 18, which may be held together on one voting day with a separate ballot for each	Each Code's coming into force section. Document 17 s. 5.3

Membership Code

A written request signed by at least 25% of Electors (Appendix D) is delivered to Council. Council prepares and presents Document 08. Notice is posted for three months. Consent is given by a majority of all Electors on the list, by referendum with mail-in voting or by petition verified by an independent electoral officer.

3. Expedited procedure

Where Council passes all Resolutions at one meeting:

- The steps for Day 0 in section 2 are taken at a single Council meeting.
- The Special Meeting on Document 05 is held at least 14 days after notice is posted. The same notice may include the election of the Finance and Audit Committee, the Housing Allocation Committee, and the Appeals Panel Elector Members, because the Codes that create them are in force from Day 0.
- Written request forms under section 13 of the Membership Code are made available at the Special Meeting, so that the three-month notice for Document 08 can start the same day.
- The Transitional Election, the Fundamental Vote on Documents 03 and 04, and the Ratification Votes on the Codes are held on one voting day, each with its own ballot (Document 17 s. 5.3).
- Where terms of office have expired, Document 05 section 28.6 requires a General Election for all eight Seats within 120 days. Section 28.5 permits notice periods for the first Election to be shortened by up to one third.

This procedure requires a Council able to pass Resolutions with a quorum present at a duly convened meeting.

4. Where Council does not act

A court does not order a Council to adopt a law. The following steps are available to Electors.

4.1 Election

Section 5.1 of the 2014 Regulations requires General Elections in June, and section 6.1 requires Council to set the date by Resolution at least 50 days before. The 2014 Regulations do not give Council power to postpone or cancel a General Election. An Elector may apply to the Federal Court for judicial review, including an order that the election be held. An application for judicial review is generally filed within 30 days after the decision is first communicated (Federal Courts Act, s. 18.1(2)).

4.2 Candidate commitments

Candidates may sign Document 01 or Document 19 before the election. Under the 2014 Regulations, a quorum of Council is two of three members, so two members elected on these commitments can pass every Resolution in section 2.

4.3 Steps started by Electors

- A written request of 25% of Electors under section 13 of the Membership Code (Appendix D). Council is required to prepare and present the amendments.
- A petition asking Council to take the steps in section 2 (Appendix E). The petition is not binding on Council.

4.4 Existing rights to information

- Indian Act s. 86(2): a copy of any by-law on request.
- By-law No. 2014.2 s. 4.1: an Annual General Assembly, quarterly Information Meetings, copies of the audit, and by-laws and major policies on request.
- First Nations Financial Transparency Act ss. 7 and 10: copies of the audited consolidated financial statements and the schedule of remuneration and expenses, and an application to a superior court if they are not provided. Section 11: any person may apply if they are not published.
- Requests are made in writing (Appendix F).

4.5 Indigenous Services Canada

Indigenous Services Canada, Alberta Region, may be asked in writing which Council members it has on record and the dates their terms end.

4.6 Removal under the 2014 Regulations

Section 18: a petition signed by 51% of all Electors, verified by Council; a Special Meeting within 14 days; and approval by at least 60% of the number of Electors who voted in the previous Election.

4.7 Limits

- An amendment to the Election Regulations adopted other than under section 20 of the 2014 Regulations is open to challenge in court.
- A vote of the Electors organized without a Resolution of Council may show the will of the community, but its legal effect is uncertain and should be reviewed by legal counsel first.
- Under paragraph 3(1)(b) of the First Nations Elections Act, the Minister may add a First Nation to the schedule of that Act if satisfied that a protracted leadership dispute has significantly compromised its governance. Elections are then held under that Act.
- A candidate commitment does not require an elected person to vote in a particular way.

5. Composition of Council

Legal requirement

Section 4.1 of the 2014 Regulations sets Council at one Chief and two Councillors. The number may be changed only by an amendment under section 20. Only persons elected under the Regulations are members of Council.

Reference

For bands that hold elections under the Indian Act, section 74(2) of that Act provides for one councillor for every one hundred members, with a minimum of two and a maximum of twelve. It does not apply to bands that select their council by custom.

Structure in Document 05

Seat	Group	Mandate
Chief	A	Chairs Council. Intergovernmental relations. Culture, language, and Elders
Finance and Audit	A	Budget, reporting, and audit. Vice-chair of the Finance and Audit Committee. Not a signing authority or a business director
Housing and Infrastructure	A	Housing Code and capital projects. No vote on individual allocations
Education, Training and Employment	A	Education, training, and employment programs. No role in individual decisions
Economic Development, Lands and Resources	B	Business entities, own-source revenue, agreements, and reserve lands
Public Works and Emergency Services	B	Roads, water, waste, facilities, and emergency management
Health, Wellness and Social Development	B	Health, wellness, food security, and social development
Off-Reserve Members	B	Services to Members off the Reserves and their participation in votes and meetings. Held by a Councillor who lives off the Reserves

Every Elector votes for every Seat. Administration and membership are not assigned to any Seat. Employees report to the Band Manager, who reports to Council as a whole. Membership decisions are made by the Elders Membership Committee under the Membership Code.

Separation of functions

Function	Who carries it out
Decides policy, budgets, and laws	Council, by Resolution at open meetings (Documents 03, 06)
Carries out decisions	The Band Manager and employees, directed only by Resolution (Document 18)
Commits and pays money	Staff within limits, with two signatures. Council above \$100,000. Electors above \$500,000 (Documents 09, 10)
Decides individual housing, education, loans, and membership	Housing Allocation Committee, Education Coordinator, Finance Officer and Business Support Panel, Elders Membership Committee (Documents 08, 11, 12, 13)
Reviews decisions	Appeals Panel, Membership Appeals Officer, Election Appeal Tribunal (Documents 05, 08, 16)
Investigates conduct	Integrity Commissioner (Document 07)
Runs elections and votes	Electoral Officer (Documents 05, 17)

6. Sequence options

Stage	Option 1: adopt before the next election	Option 2: adopt after the next election
Start	Council in office passes the Resolutions in section 2	Candidates sign Document 01 or Document 19
First vote	Special Meeting on Document 05, at least 14 days after notice	General Election under the 2014 Regulations
Second vote	General Election for all eight Seats within 120 days (Document 05 s. 28.6), with the Fundamental Vote and Ratification Votes on the same day	Special Meeting on Document 05, at least 14 days after the new Council passes the Resolutions
Third vote	None	Transitional Election for the remaining Seats within 120 days (Document 05 s. 28.5), with the Fundamental Vote and Ratification Votes on the same day
Condition	A Council able to pass Resolutions	Two of three members elected under the 2014 Regulations vote for the Resolutions

7. Special Meeting checklist (2014 Regulations, section 20)

- Obtain the number of Electors who voted in the previous Election. At least half of that number must be present (s. 20.7).
- Post notice at least 14 days before the meeting at the band office and other designated locations, and mail it to Non-resident Electors who have provided an address, with the full amendments attached (ss. 20.3 to 20.5).
- Provide registration, the List of Electors, and identification checks.
- Appoint an independent chair and vote counter. Use sealed ballot boxes and count in public.
- Record the figures required for the affidavit: the number who voted in the previous Election, the number present, the votes for and against, and the rejected ballots (s. 20.8).
- Arrange transportation and accessibility for Non-resident Electors and Elders.

8. Fundamental Vote and Ratification Vote checklist (Document 17)

- Appoint an independent electoral officer who meets the qualifications in section 8.3 of Document 05 (Document 17 s. 19.2).
- Notice at least 45 days before a Fundamental Vote and at least 30 days before a Ratification Vote, with the full text and a plain-language summary approved by the electoral officer (s. 6).
- Mail-in ballots for every Elector who requests one, and polling stations on Reserve 176A and in each city with at least 100 Electors (s. 8.1).
- Information meetings on a Reserve and online at least 14 days before the vote (s. 6.4).
- Count in public. Publish the number of Electors on the list, ballots cast, and votes for and against within three days, and certify whether the standard was met (s. 9).

9. Legal sources

Source	Provision
Indian Act, s. 2(1)	"Council of the band" includes, for a band whose council is chosen according to the custom of the band, the council chosen by that custom (paragraph (d)). Definitions of "elector", "member of a band", "child", and "common-law partner"
Indian Act, s. 2(3)	(a) A power of the band is exercised with the consent of a majority of the electors. (b) A power of the council is exercised with the consent of a majority of the councillors present at a meeting duly convened
Indian Act, s. 10	Band control of membership with the consent of a majority of the electors. Acquired rights. Band List maintained by the band
Indian Act, s. 20	Possession of reserve land allotted by the council with the approval of the Minister. Certificates of Possession
Indian Act, ss. 38, 39	Surrender and designation of reserve land, with a vote of the electors
Indian Act, s. 74(2)	Number of councillors for bands that hold elections under the Act: one for every 100 members, at least two and not more than twelve
Indian Act, s. 81	By-laws of the council, including law and order (c), disorderly conduct (d), trespass (p), residence (p.1), and fines up to \$1,000 or imprisonment up to 30 days (r)
Indian Act, s. 83	Money by-laws, which require the approval of the Minister
Indian Act, s. 85.1	Intoxicant by-laws, which require the assent of the electors at a special meeting
Indian Act, s. 86	Publication of by-laws on the internet, in the First Nations Gazette, or in a newspaper. In force on publication. Copy to any person on request
Indian Act, s. 89	Reserve property of an Indian or a band not subject to seizure except at the instance of an Indian or a band
First Nations Elections Act, ss. 3(1)(b), 42(1)(b)	Scheduling of a First Nation for a protracted leadership dispute. Approval of a community election code by a majority of votes cast where a majority of electors participate
First Nations Financial Transparency Act, ss. 5 to 13	Audited statements, Schedule of Remuneration and Expenses, copies to members, publication within 120 days, court applications, Minister's measures
First Nations Fiscal Management Act, s. 9	Financial administration laws of scheduled First Nations
Family Homes on Reserves and Matrimonial Interests or Rights Act	Rights in the family home on reserve
Federal Courts Act, s. 18.1	Judicial review, generally within 30 days
Constitution Act, 1982, s. 35	Recognition and affirmation of Aboriginal and Treaty rights

10. Records required

- The signed 2014 Regulations and the record of the meeting at which they were approved.
- The Membership Code as in force, with any amendments.
- The number of Electors who voted in the previous Election.
- Any Resolution of Council concerning the date of the next General Election.
- The names of the members of Council in office, their oath dates, and the dates their terms end.
- Confirmation of whether By-law No. 2014.2 was published under section 86 of the Indian Act.
- Existing finance, housing, education, personnel, and travel policies, signing authority Resolutions, and the list of bank and payment card accounts.
- A list of loans to Members outstanding, contracts over \$10,000 in force, and First Nation Business Entities with their directors.
- Whether the First Nation is scheduled under the First Nations Fiscal Management Act.

Appendix A. Model Band Council Resolution (2014 Regulations, section 20.2)

BAND COUNCIL RESOLUTION No. _____

Fort McMurray No. 468 First Nation

Date of meeting: _____ Place: _____

WHEREAS section 20.2 of the Customary Election Regulations of the Fort McMurray No. 468 First Nation, effective May 31, 2014, provides that amendments shall be first drafted by Council and approved by Council Resolution;

AND WHEREAS Council has reviewed the Customary Election Regulations, 2026 (Amended and Restated), dated _____;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council approves the Customary Election Regulations, 2026 (Amended and Restated), attached as Schedule A, as its draft amendments under section 20.2 of the 2014 Regulations.
2. A Special Meeting of the Electors shall be held on _____, at _____, beginning at _____, to consider and vote by secret ballot on the amendments.
3. Notice shall be posted and mailed in accordance with sections 20.3 to 20.5, at least fourteen (14) days before the Special Meeting, with a full copy of the amendments attached.
4. _____ is appointed to chair the Special Meeting, and _____ is appointed to conduct and count the vote.
5. The sum of \$_____ is approved for the Special Meeting, including transportation for Electors, childcare, and Elder support.

Quorum of Council for this Resolution: _____

Voting in favour: _____

Voting against: _____

Appendix B. Model Band Council Resolution adopting the Codes

BAND COUNCIL RESOLUTION No. _____

Fort McMurray No. 468 First Nation

Date of meeting: _____ Place: _____

WHEREAS paragraph 2(3)(b) of the Indian Act provides that a power conferred on the council of a band is exercised with the consent of a majority of the councillors present at a meeting duly convened;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council adopts the following Codes, each dated _____, which come into force on the date of this Resolution:
 - (a) Conduct and Conflict of Interest Code, 2026;
 - (b) Financial Administration Code, 2026;
 - (c) Spending and Contracts Code, 2026;
 - (d) Housing Code, 2026;
 - (e) Education Support Code, 2026;
 - (f) Business Ventures and Member Loans Code, 2026;
 - (g) Access to Information and Privacy Code, 2026;
 - (h) Whistleblower Protection Code, 2026;
 - (i) Appeals and Complaints Code, 2026;
 - (j) Community Votes and Petitions Code, 2026; and
 - (k) Administration and Personnel Code, 2026.
2. The Codes shall be published on the website of the First Nation within seven (7) days.
3. _____ is appointed as independent electoral officer under section 19.2 of the Community Votes and Petitions Code.
4. A Fundamental Vote on the Governance Constitution and the Members' Bill of Rights shall be held on a date set by the electoral officer, with at least forty-five (45) days' notice.

Quorum of Council for this Resolution: _____

Voting in favour: _____

Voting against: _____

Appendix C. Model Notice of Special Meeting (2014 Regulations, sections 20.3 to 20.5)

NOTICE OF SPECIAL MEETING OF THE ELECTORS
Fort McMurray No. 468 First Nation

A Special Meeting of the Electors will be held:

Date: _____

Time: Registration opens _____ ; meeting begins _____

Place: _____

PURPOSE: To consider and vote upon amendments to the Customary Election Regulations of the Fort McMurray No. 468 First Nation. The amendments would restate the Regulations and, among other things, expand Council to one Chief and seven Councillors elected to portfolios, including a Councillor who lives off the Reserves, fix election dates in law, create an independent Electoral Officer and appeal tribunal, and set a new process for removal from office.

A full copy of the proposed amendments is attached to this notice.

Voting will be by secret ballot. The amendments are approved if a majority of the Electors present and voting approve them at a meeting attended by at least fifty percent (50%) of the total number of Electors who voted in the previous Election.

Bring photo identification. Transportation: contact _____.

Posted on: _____ Mailed on: _____

Appendix D. Electors' written request (Membership Code, section 13)

WRITTEN REQUEST OF THE ELECTORS

TO: The Council of the Fort McMurray No. 468 First Nation

We, the undersigned Electors of the Fort McMurray No. 468 First Nation, request under section 13 of the Membership Code that Council prepare and present the Membership Code of the Fort McMurray No. 468 First Nation, 2026 (Amended and Restated), dated _____, and give notice of it to the Members as that section requires.

Printed name | Signature | Mailing address | Date | Witness signature

Representative of the Electors for inquiries:

Name: _____ Telephone: _____

Appendix E. Member petition to Council

PETITION OF MEMBERS

TO: The Chief and Council of the Fort McMurray No. 468 First Nation

We, the undersigned Members, ask Council to:

1. pass a Resolution under section 20.2 of the Customary Election Regulations approving the Customary Election Regulations, 2026 as Council's draft amendments, and call a Special Meeting of the Electors, with the notice required by sections 20.3 to 20.5, within thirty (30) days;
2. enact the Council Procedure By-law, 2026 by motion under section 26.1 of By-law No. 2014.2;
3. adopt the Codes listed in Appendix B by Resolution; and
4. call a Fundamental Vote on the Governance Constitution and the Members' Bill of Rights.

We ask for a written reply within thirty (30) days.

Printed name | Signature | Mailing address | Date | Witness signature

Appendix F. Model records request

To: Band Manager, Fort McMurray No. 468 First Nation
From: _____ (Member)
Date: _____

I request copies of the following:

1. Every by-law of the First Nation now in force, including By-law No. 2014.2, under section 86(2) of the Indian Act.
2. The audited consolidated financial statements and the schedule of remuneration and expenses of the Chief and Councillors for the most recent financial year, under section 7 of the First Nations Financial Transparency Act.
3. The minutes of the most recent Annual General Assembly and Information Meetings, under section 4.1 of By-law No. 2014.2.
4. Any Resolution concerning the date of the next General Election.

Please provide these within thirty (30) days. If any item will not be provided, please tell me in writing which one and why.

Signature: _____ Contact: _____

Appendix G. Model ballot

VOTE OF THE ELECTORS
Fort McMurray No. 468 First Nation
Date: _____

Do you approve the _____ of the Fort McMurray No. 468 First Nation, as published with the notice of this vote?

YES [] NO []

Mark one box with an X. Fold the ballot so the initials show.

Initials of the officer issuing this ballot: _____